

**AMERICAN STEEL CARPORTS, INC.**

457 N. Broadway St. Joshua, Tx 76058

Phone: (866) 730-9865

Fax : (817) 484-2182 or (866) 396-2057

Email: orders@americansteelinc.com

AUTHORIZED DEALER

Dealer: _____

Phone: _____

Email: _____

Order Date: _____

AZ-License #ROC 331517 MI- License #2102179074

SHIP TO

*Buyer Name(s): _____

*Buyer Address: _____ *City: _____ *State: _____ *Zipcode: _____

*Phone (Home): _____ Cell: _____ E-mail: _____

If unit location is different from above: _____

*Required fields must be typed or printed using ONLY black and blue ink. Incomplete forms will not be accepted . PLEASE MAKE SURE THE FORM IS COMPLETE.

BUILDING DIMENSIONS						BASE PRICE
DESCRIPTION	*Width	*Roof Length	*Base Length	*Leg Height	*Gauge	

IF YOUR UNIT IS LONGER THAN 31' IN LENGTH, WE STRONGLY RECOMMEND TO OPT FOR OUR A-FRAME VERTICAL ROOF, TO AVOID FUTURE LEAKS.

Roof Style	Standard* OR		A-Frame Horizontal*		A-Frame Vertical	
Height	Leg Height (If Height is taller than 6') _____					
Sides	Close 2 Sides	Close 1 Side	Vertical	Horizontal		
Ends	Close 2 Ends	Close 1 End	Vertical	Horizontal		
Windows	_____ Size	_____ QTY	Single-Pane	Double-Pane		
	_____ Size	_____ QTY	Single-Pane	Double-Pane		
Walk-In Doors	_____ Size		_____ QTY			
Roll-Up Doors	On End _____ Size	_____ QTY	_____ Size	_____ QTY		
	On Side _____ Size	_____ QTY	_____ Size	_____ QTY		
Insulation	(Vertical Units Only)		Roof Insulation		Fully Insulated	
Anchors	Mobile Home	Concrete	Asphalt _____ QTY	Anchor Package (100 MPH Warranty)		
Others	Color Screws					

COLOR:

Roof:* _____

Sides: _____

Trim:* _____

Ends: _____

Ridge Cap: _____

Wainscot: _____

SITE READY:

Land Level: YES NO

Electricity: YES NO

Concrete: NEW EXISTING

Concrete Size: _____

Total Sale:

Total Sale: _____

Tax: _____

Amnt. based on Tax Rate
(Of install Location)

Subtotal: _____

Labor Fee

Return Trip:

(If applicable)

Drawings:

(If applicable)

Equipment:

(If applicable)

Total: _____

Deposit: _____

Balance Due: _____

Order Will NOT be processed if dealer
collects more than allowed commission.

Ready: _____ Financed: _____ Not Ready: _____ RTO: _____

For More Info:



NOTICE: By signing this document, the customer acknowledges and agrees with all the terms and conditions included on both sides of this contract, and the sales agreement.

Customer Signature: _____

Dealer Signature: _____

Any revisions or modifications MAY result in an additional charge.

FOR OFFICE USE ONLY:

American Steel Carports, Inc. approval/Authorization:

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Sales Agreement

Buyer represents to American Steel Carports, Inc. ("ASC") that Buyer has read the foregoing Buyer Acknowledgments and Terms and Sales Agreement ("Agreement"), in connection with the purchase of the steel structure ("Structure") from ASC as referenced herein and agrees to the following terms and conditions:

Buyer Acknowledgment

Initial

- Buyer's Responsibilities Prior to Install.**
Buyer acknowledges that prior to the installation of the Structure, the construction site is leveled and prepped for installation and ensures that all underground utilities are flagged for the area assigned for the structure. Buyer is solely responsible to obtain all permits and building authorizations required to install the purchased structure.
- Lead Time Commencement.**
Buyer acknowledges that all lead times associated with Buyer's Structure shall commence upon Buyer's site being adequately prepped for installation. Any lead time associated with Buyer's order shall commence once Buyer obtains a permit and the concrete slab, where applicable, has been finished. Buyer further acknowledges that production, delivery, and installation lead times are only an estimate and are subject to change.
- Modifications to Steel Structure.**
Buyer acknowledges any modification, addition, deletion or substitution to the structure without express written design approval by ASCI, will VOID all warranties. Our products are designed and specifically engineered to provide superior performance as manufactured. Any changes to the design by the Buyer could compromise the structural integrity of the unit.
- Payment in Full.**
Final payment is due in full at the time of installation. Buyer expressly agrees that the structure shall remain property of ASC until payment is made in full.
- Structure Anchoring.**
Buyer acknowledges that the Structure purchased should only be anchored by an ASC certified anchoring system. Any failure to anchor the steel structure with an ASC certified anchoring system will Void the wind warranty provided by ASC to Buyer.
- Insurance.**
It is the Buyer's sole responsibility to obtain insurance coverage on the Structure. ASC highly recommends that Buyer obtain insurance coverage on the Structure. ASC does not insure Structures once unloaded from delivery trucks.
- Cancellation.**
ASC reserves the right to cancel any order due to pricing errors or insufficient information, and/or if there is a discrepancy of more than 1% of the total sale at any time. Buyer should ensure this order is accepted by ASC prior to making any changes to their property in anticipation of receipt of the Structure.
- Down Payment Refund.**
Down payments on an ASC structure are paid directly to the dealer upon entering into the purchase order and are non-refundable.
- Down Payment Refunds on ASC Online and Manufacturer Direct Sales.**
Upon receipt of proof of cancellation, due to county permitting that is out of the Buyer's and ASC's control, ASC will refund the Buyer's deposit; this explicitly excludes any cost incurred in connection with specially engineered designs and construction plans. In the event of a cancellation by the Customer for any other issue not related to permitting, the deposit will be non-refundable.

Buyer Signature

The Buyer, by the initials above and signature below, represents that he/she has reviewed this Buyer Acknowledgment and the Terms of the Sales Agreement below and understands those terms and the responsibilities set forth herein and agrees to bind themselves to the provisions.

Buyer's Signature

Date

Buyer's Name (printed)

Terms of Sales Agreement

Payment.

Payment. Payment shall be made by the Buyer to the Seller in accordance with the terms set forth in this Agreement. All sales are C.O.D. with payment of balance due in full at time of installation and made payable to "American Steel Carports, Inc."

Adjustment to Sales Price for Code Compliance. Buyer acknowledges that each state, city, and county may have varying code requirements and Buyer's local code requirements may require additional work to be performed that is not reflected in the sales price of this Agreement. In the event that Buyer's local code requirements require additions not covered in the Sales Agreement, Buyer further acknowledges that an adjustment may be made to the Sales Price. Any code required modification will require a separate quotation and approval by ASC and Buyer.

Modifications to Initial Design. Buyer acknowledges that any subsequent modifications to the initial design of the Structure as set forth in the Sales Agreement may be subject to a price adjustment.

Purchase, Delivery, & Installation.

Delivery & Installation Schedule. Shipping and Installation dates are estimated based on ASC's present manufacturing capacity and scheduling, and may be revised by ASC upon receipt or scheduling of Buyer's order. All shipping dates are approximate and shall be computed from the date of entry of the order on ASC's books. All shipping dates are further subject to ASC's prompt receipt from Buyer of this signed Agreement, letter of credit, deposit, and other conditions as specified in the Agreement, and of all drawings, information, and approvals necessary to provide the Structure and to grant any credit proposed in the Agreement.

Photographing Job Site. Before, during, and after the installation process, Buyer agrees to allow the Independent Contractor to photograph the site and installation. If needed, Buyer agrees to provide pictures in the case of repairs, red tags, and/or built overs.

Foundations. American Steel Carports, Inc. does not install foundations and all costs associated with foundations shall be the sole responsibility of the Buyer as well as the design, size, and specifications.

ASC Approved Independent Contractor. All warranties will be voided if the Structure is installed by anyone other than an ASC approved Independent Contractor. Workmanship Warranty. ASC approved Independent Contractors are contracted to provide a one-year workmanship warranty on all structures they install. The workmanship warranty does not cover roof leaks on horizontal units longer than 31ft. in length. Water under the base rail is not covered under the warranty and it is not considered a defect/repair.

Utilities Marked Off. It is Buyer's duty to inform the Independent Contractor of any underground cables, gas lines, septic systems, or any other utility lines. ASC will not be responsible for any damages to unmarked and/or un-located utilities.

Leveling of Job Site. Buyer is solely responsible for having the jobsite leveled prior to the installation of the Structure. ASC is not responsible for the present physical conditions at the installation location or any damage resulting from the installation (such as grass, mud prints, fences, posts, etc.). If the lot is not leveled at the time of installation the unit may be installed "AS IS" (and the warranties will be voided). In the event the jobsite is not properly prepared for installation and ASC is forced to cancel the installation, the Buyer will be charged an additional fee associated with either restocking or re-mobilizing the installation. Fee charges may vary depending on freight and Independent Contractor re-mobilization costs. If the job site is inadequately prepared by Buyer, ASC reserves the right to cancel Buyer's order. In the event Buyer directs Independent Contractor to erect the Structure on unlevel or inadequate site conditions, it will be at the Independent Contactor sole discretion to do so, and Buyer acknowledges the warranty will be voided.

Anchoring. Some state and local ordinances may require a foundation prior to installation. It is highly recommended that all ground, gravel, or blacktop installation be securely fastened with the correct number of ASC certified anchors. The Buyer is responsible for patching and repairing blacktop after anchors are installed. Re-bar pins are designed for temporary use only. ASC will not be responsible for any damage to and/or by the structure if the Buyer chooses to use only the re-bar pins provided with the carport and failure to utilize ASC certified anchors will void Buyer's warranty.

Delay of Shipment or Performance.

Delay Due to Buyer. In the event that a customer is not ready for install on their own behalf, ASC reserves the right to modify the price on the contract after 6 months from the original purchase date to reflect current material and labor prices. If shipment of any materials or other performance by ASC is delayed at the request or due to the fault of the Buyer, ASC may at its option hold the materials at the place of manufacture at the risk and expense of the Buyer from the time it is ready for shipment.

Delay Due to ASC. Dates for ASC's performance are only estimates. In addition, ASC shall not be in default of this Agreement due to its delay or failure to deliver or perform resulting, in whole or in part, from: (i) Force Majeure as defined below; (ii) material shortages; or (iii) the lack of usual means of transportation, accidents, contingencies, or events, at ASC's or its supplier's plant or elsewhere (whether or not beyond ASC's control) which directly or indirectly interfere with, or render substantially more burdensome, ASC's production, delivery, or ASC's performance of the Agreement within the timeframe set forth with Buyer.

Force Majeure. "Force Majeure" means any event or circumstance beyond the reasonable control of ASC which prevents or impedes ASC's due performance of this Agreement, which by the exercise of reasonable diligence, ASC is unable to prevent, including, without limitation, acts of God; acts of war, whether declared or not declared; epidemics and pandemics; public disorders, rebellion, riot, civil unrest, or sabotage; acts or attempted acts of terrorism, flood, earthquake, lightning, storms, tornadoes and hurricanes or other natural physical disaster; explosion or fire; expropriation, nationalization, requisition or other interference by any government authority; the enactment or amendment after the effective date of this Agreement of any statute, order, by-law or other rule or regulation having the force of law promulgated by a government body claiming to have jurisdiction over a Party; and national or regional strikes and similar labor disputes.

Payment of Taxes. In addition to the Purchase Price specified in this Agreement, the amount of any present or future use, excise, or similar tax applicable to the sale of the Structure will be paid by the Buyer, or alternatively, the Buyer will provide the Seller with a certificate of tax exemption acceptable to the applicable taxing authorities. This certificate of tax exemption shall be provided at the time of execution of this Agreement. Failure to provide the certificate of tax exemption shall constitute Buyer's acceptance of any and all applicable taxes associated with the transaction.

Inspection & Claims. Buyer, upon receiving possession of the Structure, shall promptly inspect to ensure the Structure complies with the specifications set forth in this Agreement. Buyer's failure to give notice of any claim within the first ten (10) days from the date of delivery and installation will constitute an unqualified acceptance of the Structure and a waiver by the Buyer of all claims of defect in manufacturing or installation with respect to the Structure.

Default. The occurrence of any of the following shall constitute a material default under this agreement:

- a. The failure by Buyer to make any required payment(s) to ASC when due.
- b. The insolvency of Buyer
- c. The subjection of Buyer's property to any levy, seizure, general assignment for the benefit of creditor's, application, or sale for or by any creditor or governmental agency.
- d. Failure by Buyer to make the space available for the delivery and assembly of the Structure including ensuring that the job site is level and prepped for installation.

Remedies on Default. In addition to any and all other rights a party may have available under the law, if a party defaults by failing to substantially perform any provision, term or condition of this Agreement (including without limitation the failure to make any payment due under this Agreement), the other party may terminate this Agreement by providing written notice to the defaulting party

repair and replacement of nonconforming materials at ASC's option, provided ASC is notified in writing of any defect. However, ASC will not elect refund unless it is unable to provide replacement, and repair is not commercially practicable. This exclusive remedy will not be deemed to have failed of its essential purpose so long as ASC is willing and able to repair or replace the defective parts.

ASC Remedy. In the event Buyer fails to make payment in full to ASC, ASC may, at its sole discretion, reacquire and repossess the Structure. ASC retains a security interest in the Structure until the Buyer pays the amount due to ASC in full. In the event ASC repossesses the Structure from Buyer, Buyer shall still be liable to ASC for all damages associated with its breach of this Agreement. ASC's election of this remedy does not waive any of its other rights or remedies available to it in the event of Buyer's default.

Governing Law. The formation, construction, performance, and enforcement of this Agreement shall be in accordance with the laws of the State of Texas without regard to its conflict of law provisions or the conflict of law provisions of any other jurisdiction and the Parties agree to venue in Tarrant County, Texas to the exclusion of any other permissible venue.

Limitation on Liability. THE MAXIMUM LIABILITY, IF ANY, OF ASC FOR ANY DAMAGES FOUND AGAINST IT IS THE FACE VALUE OF THIS AGREEMENT. THIS CAP ON DAMAGES IS REGARDLESS OF WHETHER THE CLAIM IS BASED UPON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR ANY OTHER CLAIM. ASC SHALL NOT BE LIABLE FOR CONSEQUENTIAL DAMAGES, SPECIAL DAMAGES, PUNITIVE OR EXEMPLARY DAMAGES, LOST PROFITS, OR ANY OTHER AMOUNTS. THIS LIMITATION OF LIABILITY IS A MAJOR INDUCEMENT FOR ASC TO ENTER INTO THIS AGREEMENT AND ASC WOULD NOT ENTER THIS AGREEMENT BUT FOR THIS LIMITATION. IN THE EVENT ANY STATE RESTRICTS THE LIMITATION OF LIABILITY, THEN THE MAXIMUM LIABILITY, IF ANY, OF ASC SHALL BE LIMITED TO THE MINIMUM AMOUNT ALLOWED BY SUCH STATE RESTRICTION.

Limited Warranty. These ASC Limited Warranties shall issue to Buyer upon payment in full. Any relocation of the Structure will void all warranties.

Rust Warranty. ASC warrants the structure, for a period of 20 years from the date of completion of installation, against rust on the framing, assuming normal user care and maintenance. This rust warranty only covers 12-gauge material. All other material, including 14-gauge steel, is expressly excluded.

Wind Warranty. ASC warrants for the life of the structure, with the purchase of ASC certified anchoring system, against damages to the structure for winds of up to 100 MPH. Any winds in excess of 100 MPH are expressly excluded. Any unauthorized modification to the structure will void this warranty.

Manufacturer Paint Warranty. The ASC Warranted finish will not peel, flake, or otherwise lose adhesion ("Film Integrity") to an extent that is apparent on ordinary outdoor visual observation. Expressly excluded from this warranty is normal wear and tear along with slight crazing or cracking which may occur on roll-formed edges or break/bends at the time of forming. These potential crazing and/or cracking in the paint shall not constitute a basis for a warranty claim. Further, failure due to substrate issues including, but not limited to corrosion are not covered by this Limited Warranty. ASC provides a manufacturer warranty on 29-Gauge steel for a period of 10 years, and 26-Gauge steel for a period of 20 years. These ASC Limited Warranties shall issue to Buyer upon payment in full. Any relocation of the Structure will void all warranties.

Warranty Disclaimer. THERE ARE NO WARRANTIES OTHER THAN THOSE DESCRIBED HEREIN. THE WARRANTIES IN THIS AGREEMENT ARE IN LIEU OF ALL OTHER WARRANTIES EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION, ANY WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, WHICH ARE EXPRESSLY DISCLAIMED. IN THE EVENT ANY PARTICULAR STATE LIMITS DISCLAIMER OF WARRANTIES, THEN THIS DISCLAIMER SHALL BE AS BROAD AS ALLOWED BY THAT STATE'S LAW.

Warranty Limited to Original Purchaser. The Limited Warranty extends only to the original purchaser of the Structure and is non-transferable.

Notices. All notices to be given hereunder shall be transmitted by certified or registered mail, return receipt requested, and shall be sent to the addresses identified in this Agreement, unless notification of change of address is given in writing. Notice shall be effective upon receipt or in the case of email, upon confirmation of receipt.

Entire Agreement. This Agreement comprises the entire understanding of the Parties hereto on the subject matter herein contained, and supersedes and merges all prior and contemporaneous agreements, understandings and discussions between the Parties relating to the subject matter of this Agreement.

Modification. This Agreement may be modified and amended by the Parties, but any modification of this Agreement must be in writing and executed by both Parties.

Severability. Whenever possible, each provision of this Agreement shall be interpreted in such manner as to be effective and valid under applicable law, but if any provision of this Agreement is held invalid or unenforceable, the remainder of this Agreement shall nevertheless remain in full force and effect and the invalid or unenforceable provision shall be replaced by a valid or enforceable provision.

Waiver. Failure by either Party to enforce any right or seek to remedy any breach under this Agreement shall not be construed as a waiver of such rights, nor shall a waiver by either Party of default in one or more instances be construed as constituting a continuing waiver or as a waiver of any other breach.

THE PARTIES ACKNOWLEDGE THAT THEY HAVE READ THIS ENTIRE AGREEMENT CAREFULLY AND UNDERSTAND ITS TERMS. EACH PARTY FURTHER ACKNOWLEDGES THAT THEY ARE NOT RELYING ON ANY REPRESENTATIONS OF THE OTHER PARTY AND HAVE CONSULTED, OR HAD THE OPPORTUNITY TO CONSULT, THEIR OWN INDEPENDENT LEGAL COUNSEL.

BY THEIR EXECUTION, THE PARTIES HERETO HAVE AGREED TO ALL OF THE TERMS AND CONDITIONS OF THIS AGREEMENT EFFECTIVE AS OF THE LAST DATE OF SIGNATURE, AND EACH SIGNATORY REPRESENTS THAT IT HAS THE FULL AUTHORITY TO ENTER INTO THIS AGREEMENT AND TO BIND HER/HIS RESPECTIVE PARTY TO ALL OF THE TERMS AND CONDITIONS HEREIN.

Buyer Signature

Buyer's Signature

Date

Buyer's Name (printed)

Cancellation Policy

The Dealer named on the face of this Order is NOT an agent of Seller for any purpose except receipt of the Deposit. No representation or agreement by the Dealer is binding on Seller. The dealer offers a 72-hour cancellation policy once signed.

Refunds are not permitted for any reason once signed and sent to the manufacturing process unless denied permits signed by a government official within 90-days of signing the contract. After 90 days, the deposit is non-refundable. If your county requires any site specific engineered plans all necessary plans must be purchased in order to qualify for a permit denial.

Habitable structures do not qualify for a refund.

Delivery Time Scheduling:

All delivery times are estimates based on the time the customer gets on the schedule. The customer gets on schedule when their permitting is done & land is ready for installation. Weather conditions and construction issues can affect the delivery timeline.

Building projects that take longer than six months to complete can be subject to current material price.

Revision :

There will be a revision fee of \$150 dollars per revision for each change made after the order has been processed. The revision fee can be waived if changes are needed to be made by permitting officials. Revisions that result in a decrease of deposit are non-refundable



Wall Installation - 3 Feet Maximum



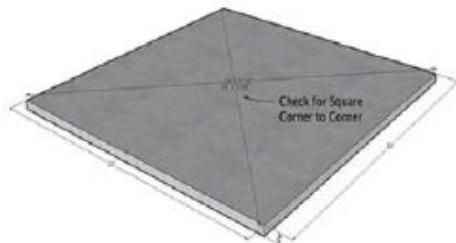
No Installs on Stacked Blocks



No Installs on Floating Docks



No Installs on Uneven Land



Slab Must Be Level & Square



No Installs on Slopes Over 12"

Customer Signature _____

Date _____